



Book	Policy Manual
Section	5000 Students
Title	Copy of SCHOOL-SPONSORED PUBLICATIONS AND PRODUCTIONS
Code	po5722
Status	First Reading
Adopted	July 23, 2007
Last Revised	November 16, 2009

5722 - SCHOOL-SPONSORED PUBLICATIONS AND PRODUCTIONS

The Board of Education sponsors student publications and productions as means by which students learn, under adult direction/supervision, the rights and responsibilities inherent when engaging in the public expression of ideas and information in our democratic society.

For purposes of this policy, "school-sponsored student media" shall include both student publications and productions. "Student publications" shall include any written materials, (including, but not limited to, banners, flyers, posters, pamphlets, notices, newspapers, playbills, yearbooks, literary journals, books, and t-shirts and other school-sponsored clothing), ~~as well as material in electronic or on-line form (including, but not limited to, websites, web logs ("blogs"), video or audio clips, and newsletters or announcements transmitted by e-mail, wireless broadcast or other similar distribution/dissemination).~~, as well as material in electronic or on-line form (including, but not limited to, Apps and Services (as defined in Bylaw 0100, webpages/sites, web logs ('Blogs), video or audio clips, (postings of Social Media (as defined in Bylaw 0100), and newsletters of announcements transmitted by e-mail, text, wireless broadcast, or other similar distribution/dissemination).

The Board expressly prohibits the use of Social Media related to student publications.

"Student productions" shall include vocal and theatrical performances, impromptu dramatic presentations, or any electronic media (including, but not limited to, radio and television programs, podcasts, and other video or audio productions that are recorded for re-broadcast or broadcast in real time using any available broadcast technology).

Further, the term "publication" shall include distribution and dissemination of a student publication; and the term "performance" shall include presentation and broadcast of a student production.

Only District-approved social media (as defined in Bylaw 0100) may be used to host school-sponsored student media, in accordance with Policy 7544. School-sponsored student media must also comply with Policy 7540.02.

For purposes of this policy, school community is defined to include students, Board employees (i.e., administrators, and professional and classified staff), parent/family members authorized or otherwise permitted by the Superintendent to view a performance or receive directly from the District a publication.

The following speech is unprotected and prohibited in all school-sponsored student publications and productions: speech that is defamatory, libelous, obscene or harmful to juveniles; speech that is reasonably likely to cause substantial disruption of or material interference with school activities or the educational process; speech that infringes upon the privacy or rights of others; speech that violates copyright law; speech that promotes activities, products or services that are unlawful (illegal) as to minors as defined by State or Federal law; and speech that otherwise violates school policy and/or State or Federal law. The Board authorized the administration to engage in prior review and restraint of school-sponsored publications and productions to prevent the publication or performance of unprotected speech.

While ordinarily nonpublic forum student expression may only be published/performed to members of the school community, the Superintendent may authorize specific nonpublic forum student expression to be published/performed outside the school community (i.e., to the general public). A teacher, student, or group of students who wish to have

nonpublic forum student expression published/performed outside the school community must submit to the Superintendent a request for prior written approval for such publication/performance.

~~The Board designates all official, school-sponsored student media to be limited-purpose public forums.~~

The Board designates all school-sponsored student media as limited-purpose public forums where students can address matters of concern and/or interest to their readers/viewers. All school-sponsored student media may be published/performed outside the school community. The student journalists, content-creators and/or performers involved in these publications/productions have the right to determine the content of the student media.

The content may address general matters of public concern and is open to the public at large for comment at the discretion of the student journalists/content-creators/performers. School officials will not review or restrict the content of school-sponsored student media prior to publication/performance, except with respect to unprotected speech.

Each medium should provide a full opportunity for students to inquire, question, and exchange ideas.

Content should reflect all areas of student interest and may include topics about which there may be dissent and/or controversy.

As limited-purpose public forums the student journalists or performers associated with the publications and/or productions listed above may address matters of concern and/or interest to their readers/viewers. These limited-purpose public forums are not open to the public at large and are not intended to address general matters of public concern. As limited-purpose public forums, school officials will not routinely and systematically restrict content of the publications and/or productions listed above prior to their publication/performance; however, school officials may review the content and reject an article/publication/production due to one of the following four (4) reasons:

- A. where poor grammar or writing is evident;
- B. where a legitimate question of age appropriateness of the material exists;
- C. where matters beyond the limited scope of the forum are included; and/or
- D. where the content involves unprotected speech.

These publications and or productions shall contain a notice to the reader/viewer that the material, while school-sponsored, is student directed and subject only to limited prior review. Given these student publications and/or productions have been designated as limited-purpose public forums, the school assumes no liability for their content beyond that covered by the school officials' limited prior review. With editorial control comes responsibility. Student journalists and performers are expected to establish and enforce standards for their publications/productions that are consistent with professional journalism/theatrical/broadcast standards.

School-sponsored student media may not be published/performed outside the school community (i.e. publication/performance is limited to students, staff and parents/family members) except with the prior written approval of the building principal.

All other school-sponsored student publications and productions, including classroom and/or other curricular, co-curricular, or extra-curricular/club-related publications and/or productions, are nonpublic forums. As nonpublic forums, the content of these other student publications and productions can be regulated for legitimate pedagogical school-related reasons. School officials shall routinely and systematically review and, if necessary, restrict the content of all school-sponsored student media except those publications/productions listed above, prior to publication/performance in a reasonable manner that is neutral as to the viewpoint of the speaker.

Advertising is permitted in ~~some school-sponsored student publications/productions.~~ all school-sponsored student media.

Advertisements submitted for publication or inclusion in a production shall be reviewed by the Superintendent / school officials

Advertisements submitted for publication or inclusion in a production shall be reviewed by the class/activity advisor and the building principal. The Superintendent and Board retains the final authority to determine whether an advertisement is appropriate and will be

included in a publication/production. Advertisements may be rejected for legitimate pedagogical school-related reasons unrelated to the viewpoint of the advertiser (e.g., the advertisement encourages action that would endanger the health and safety of students).

General Prohibitions

Regardless of their status as non-public or limited-purpose public *forums*, the Board prohibits publications, productions and advertisements that:

- A. promote, favor, or oppose any candidate for election or the adoption of any bond issue, proposal, or question submitted at any election;
- B. fail to identify the student or organization responsible for the publication/performance;
- C. solicit funds for nonschool organizations or institutions when such solicitations have not been approved by the Board.